

वसई-२	
दस्ता क्र. १२३	१२०८९
४ २०	

AGREEMENT FOR SALE

ARTICLES OF AGREEMENT is made and entered into at VIRAR on this 4 day of January in the Christian year Two Thousand Nineteen.

BETWEEN

M/s.SHYAAM REALTY, a proprietary concern, through its proprietor Mr. Laxminarayan Prabhudayal Agarwal, having his office at 1, Gokul, Opp. Petrol Pump, Agashi Road, Virar (West), Taluka Vasai, District Palghar, hereinafter referred to as "THE PROMOTER" (which expression shall unless it be repugnant to the context or meaning thereof be deemed to include his heirs, executors, administrators and assigns) of the ONE PART

1. N.A.
2. Geyvartale



2. Geyvartale

2. Geyvartale
N.A.
Geyvartale

दस्तावेज-२
दस्तावेज क्र. 723 / 2028
५ / २०

2 Geyvartak
2 Gaurav
L.N.A. 2

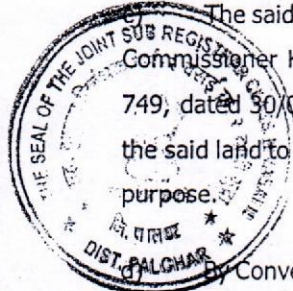
AND

Mr./Mrs. GAURI GAURAV VARTAK
GAURAV RAGHUNATH VARTAK
 Residing at A-205 VINAYAK APARTMENT, KARDAL
ROAD, ABOVE PARTH HOSPITAL, SAPHALE,
UMBARPADA, PALGHAR, MAHARASHTRA-401102
 hereinafter called "**THE ALLOTTEE/S**" (which expression shall unless it be repugnant to the context or meaning thereof be deemed to include his/her/their heirs, executors, administrators and assigns) of the **SECOND PART**.

WHEREAS :-

a) Mr. DamaMahaduBhoir was the owner of land bearing Survey No. 383, admeasuring H.R. 4-41-0, laying being and situate at Village BOLINJ, Taluka Vasai, District Palghar, Within the area of Sub-Registrar Vasai No. II (Virar) more particularly described in the schedule 'A' hereunder written.

b) The said land was allotted to DamaMahaduBhoir on New Tenure vide Taluka Order No. R.T.S. 3639, dated 01/01/1955 and subsequent order L.N.D. 6-56 and L.N.D. 76-1956 respectively on the terms and conditions mentioned in the said orders and accordingly Mutation Entry No. 1740, the said land has been recorded in the name of DamaMahaduBhoir. The said Mutation Entry was certified by E.A.K.



The said land was applicable to New Tenure and therefore the Office of the Commissioner Konkan Division by his Order bearing No. RB-Desk-2-LND-II-CR-749, dated 30/05/1986 has granted the permission to DamaMahaduBhoir to sell the said land to Mr. Laxminarayan Prabhudayal Agarwal for use of non-agriculture purpose.

By Conveyance Deed dated 22/08/1986 and registered in the office of Sub-Registrar at Vasai Mr. DamaMahaduBhoir sold and conveyed the said land to Mr. LaxminarayanPrabhudayal Agarwal.

e) As such MR. LAXMINARAYAN PRABHUDAYAL AGARWAL proprietor of M/s. Shyaam Realty (hereinafter called "The Promoter") is the owner of or otherwise well and sufficiently entitled to the said land.

2 Geyvartak

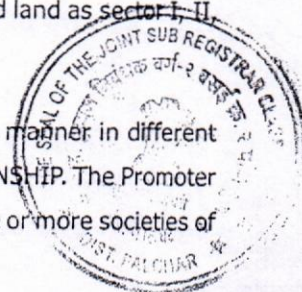
2 Gaurav

2

L.N.A. 2

पत्र-२	
पत्र क्र. १२३	१२०९८
२१८०	

- f) The said land has been converted into N.A. by the Office of Collector of Thane vide its Order bearing No. REV/K-1/T-9/NAP/SR-43/2004, dated 19/06/2004.
- g) The Promoter have amalgamated the land bearing Survey No. 383 and Plot No. 1 to 6, Garden & Internal Road (Scheme-A) out of Survey No. 354, and obtained the Commencement Certificate for the proposed Layout from the City and Industrial Development Corporation of Maharashtra Ltd., vide its letter No. CIDCO/VVSR/CC/BP3022 & 3466/W/2613, dated 01/12/2005.
- h) The Promoter has obtained the Amended Plan approval for the proposed Resi./Resi. With Shopline Buildings from the City and Industrial Development Corporation of Maharashtra Ltd., vide Order bearing No. CIDCO/VVSR/AM/BP-3022 & 3466/W/4439, dated 07/11/2007.
- a) The amendment plan approval for the proposed Residential Building has been obtained from City and Industrial Development Corporation of Maharashtra Ltd. Vide its order bearing No. CIDCO/VVSR/AM/BP3022 & 3466/W/1320, Dated 12/12/2006.
- b) The Amended Plan approval for the proposed Residential/Residential with Shopline Buildings has been obtained from City and Industrial Development Corporation of Maharashtra Ltd., vide its Order bearing No. CIDCO/VVSR/AM/BP-3022 & 3466/W/4439, dated 07/11/2007.
- i) The Promoter has for convenience of development of Buildings on land bearing S.No. 383 Village Bolinj has demarcated the aforesaid land as sector I, II, III, IV, V, CFC plot and D. P. Roads and internal roads.
- j) The Promoter is constructing Buildings in phase wise manner in different sectors and the entire township is known as VRINDAVAN TOWNSHIP. The Promoter has commenced construction of Buildings in Sector I & II. One or more societies of all the Buildings in sector I & II shall be formed.
- k) The Promoter has obtained the Revised Development permission for the proposed Residential/Residential with shopline Buildings from the City and Industrial Development Corporation of Maharashtra Ltd., vide its Order bearing No. CIDCO/VVSR/AM/BP-3022 & 3466/W/3414, dated 13/02/2009.



2 Bgv certak
2 Bgv certak
1 N.A³

प्लॉट-२
दस्तावेज क्र. १२३ / २०११
६/१८०

w) AND WHEREAS the carpet area of the said Apartment is 42.74 square meters and "Carpet area" means the net usable floor area of an apartment, excluding the area covered by the external walls, areas under services shafts, exclusive balcony appurtenant to the said Apartment for exclusive use of the Allottee or verandah area and exclusive open terrace area appurtenant to the said Apartment for exclusive use of the Allottee or verandah area and exclusive open terrace area appurtenant to the said Apartment for exclusive use of the Allottee, but includes the area covered by the internal partition walls of the apartment.

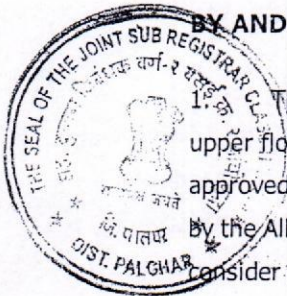
x) AND WHEREAS, the Promoter has registered the Project under the provisions of the Real Estate (Regulation & Redevelopment) Act, 2016 with the Real Estate Regulatory Authority at Mumbai No. P99000004682;

y) AND WHEREAS prior to the execution of these presents the Allottee/s has paid to the Promoter a sum of Rs. 2800000/- (Rupees TWENTY EIGHT LAKH ONLY only), being part payment of the sale price of the flat agreed to be sold by the Promoter to the Allottee/s as advance payment or deposit (the payment and receipt whereof the Promoter do and each of them doth hereby admit and acknowledge) and the Allottee/s has agreed to pay to the Promoter balance of the sale price in the manner hereinafter appearing.

z) AND WHEREAS under Section 13 of the said Act the Promoter are required to execute a written Agreement for sale of said flat to the Allottee/s, being in fact these presents and also to register said agreement under the Registration Act, 1908.

NOW THIS AGREEMENT WITNESSETH AND IT IS HEREBY AGREED

BY AND BETWEEN THE PARTIES HERETO AS FOLLOWS :-



The Promoter are constructing the said Building consisting of Ground and 7 upper floors on the said land in accordance with the plans designs, specifications approved by the concerned local authority and which have been seen and approved by the Allottee/s with only such variations and modifications as the Promoter may consider necessary or as may be required by the concerned local authority/the Government to be made in them or any of them:

PROVIDED THAT the Promoter shall have to obtain prior consent in writing to the Allottee/s in respect of such variations or modifications which may adversely affect the flat of the purchaser.

Gewartak

Gawatin

V.N.A.

Gewartak

Gawatin

V.N.A.

वसई-२	
प्लॉट १२३	१२०१९
८१४२०	

q) AND WHEREAS being the Owner of the land more particularly described in the First Schedule hereunder written Promoter herein alone has the sole and exclusive right to sell the flats/Shops in the said Building/s with the Allottee/s of the flats/Shops and to receive the sale price in respect thereof;

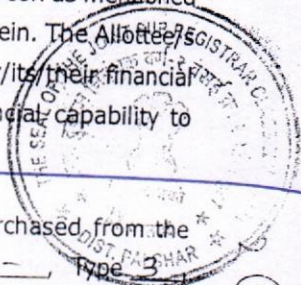
r) AND WHEREAS the Allottee/s demanded from the Promoter and the Promoter have given inspection to the Allottee/s of all the documents of title relating to the said land, the said Order, the Development Agreement and the Plans, designs and specifications prepared by the Promoter's Architects M/s. Shah Gattani Consultants and of such other documents as are specified under the Maharashtra Ownership flats Regulation of the Promotion of Construction, Sale, Management and Transfer Act, 1963 (hereinafter referred to as "The said Act") and the rules made thereunder.

s) AND WHEREAS the copies of Certificate of Title issued by the attorney at law or advocate of the Promoter, copies of Property card or extract of Village Forms VI or VII and XII or any other relevant revenue record showing the nature of the title of the Promoter to the said land on which the flats are constructed or are to be constructed and the copies of the plans and specifications of the Flat agreed to be purchased by the Allottee/s approved by the concerned local authority have been annexed hereto and marked Annexure '—', 'A' and 'F' respectively.

t) AND WHEREAS the Promoter have accordingly commenced construction of the said building/s in accordance with the said plans.

u) Prior to execution of this Agreement, the Allottee has/have obtained independent legal advice with respect to this Agreement and the transaction contemplated herein with respect to the said Flat, made enquiries thereon and is satisfied with respect to, (i) the title of the Promoter to develop the Real Estate Project and such title being clear and marketable; (ii) the approvals and permissions (including CC) obtained till date and (iii) the Promoter's entitlement to develop the Real Estate Project and to construct the Real Estate Project thereon as mentioned in this Agreement and applicable law and sell the premises therein. The Allottee/s undertake(s) that he/she/it/they has/have verified with his/her/its/their financial advisor and confirm that the Allottee/s has/have the financial capability to consummate the transaction.

v) AND WHEREAS the Allottee/s has/have agreed to purchased from the Promoter Flat No. D/101 on 1ST Floor, in Building No. —, Type 3 known as "Gokul Park, in "Vrindavan Township" in Sector —, situated at Village BOLINJ, Taluka Vasai, District Palghar, within the area of Sub-Registrar at Vasai No. II (Virar).



General

2 General

3 General

2 General

वसई-२
दस्तावेज क्र. ७२३ १२०१३
६/१२०

w) AND WHEREAS the carpet area of the said Apartment is 42.74 square meters and "Carpet area" means the net usable floor area of an apartment, excluding the area covered by the external walls, areas under services shafts, exclusive balcony appurtenant to the said Apartment for exclusive use of the Allottee or verandah area and exclusive open terrace area appurtenant to the said Apartment for exclusive use of the Allottee or verandah area and exclusive open terrace area appurtenant to the said Apartment for exclusive use of the Allottee, but includes the area covered by the internal partition walls of the apartment.

x) AND WHEREAS, the Promoter has registered the Project under the provisions of the Real Estate (Regulation & Redevelopment) Act, 2016 with the Real Estate Regulatory Authority at Mumbai No. P99000004682;

y) AND WHEREAS prior to the execution of these presents the Allottee/s has paid to the Promoter a sum of Rs. 2800000- (Rupees TWENTY EIGHT LAKH ONLY only), being part payment of the sale price of the flat agreed to be sold by the Promoter to the Allottee/s as advance payment or deposit (the payment and receipt whereof the Promoter do and each of them doth hereby admit and acknowledge) and the Allottee/s has agreed to pay to the Promoter balance of the sale price in the manner hereinafter appearing.

z) AND WHEREAS under Section 13 of the said Act the Promoter are required to execute a written Agreement for sale of said flat to the Allottee/s, being in fact these presents and also to register said agreement under the Registration Act, 1908.

NOW THIS AGREEMENT WITNESSETH AND IT IS HEREBY AGREED

BY AND BETWEEN THE PARTIES HERETO AS FOLLOWS :-



The Promoter are constructing the said Building consisting of Ground and 7 upper floors on the said land in accordance with the plans designs, specifications approved by the concerned local authority and which have been seen and approved by the Allottee/s with only such variations and modifications as the Promoter may consider necessary or as may be required by the concerned local authority/the Government to be made in them or any of them:

PROVIDED THAT the Promoter shall have to obtain prior consent in writing to the Allottee/s in respect of such variations or modifications which may adversely affect the flat of the purchaser.

Gyverlak

Gauarim

6

जमई-१
दस्ता क्र. १२३ १२०१९
३६ १८०

ANNEXURE E

Bevelak
Garadim
L.N.A

FIRST FLOOR PLAN



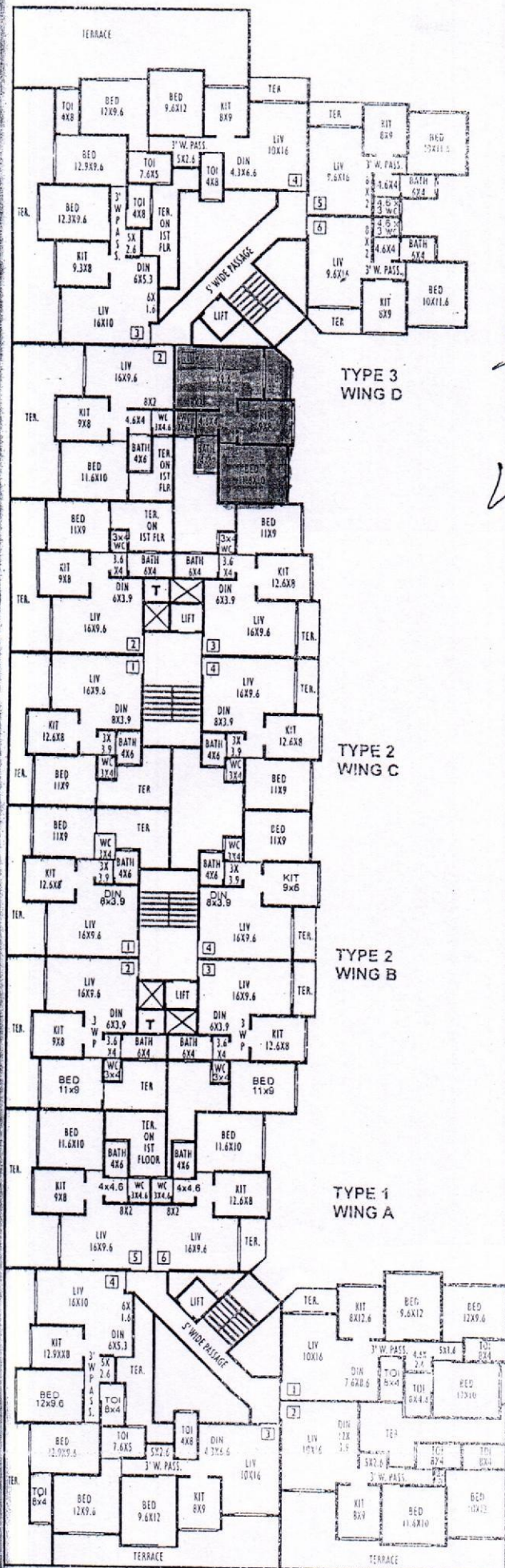
FLAT NO. D/101
WING D
AREA 42.74 Sq.mtr



SHYAAM REALTY

L.N. Agamwal

Proprietor





04/01/2019

सूची क्र.2

दुय्यम निबंधक : सह दु.नि. वसई 2

दस्त क्रमांक : 123/2019

नोदणी :

Regn:63m

गावाचे नाव : बोळीज

(1)विलेखाचा प्रकार	करारनामा
(2)मोवदला	2800000
(3) बाजारभाव(भाडेपट्ट्याच्या वावतितपट्टाकार आकारणी देतो की पट्टेदार ते नमुद करावे)	2459000
(4) भू-मापन,पोटहिस्सा व घरक्रमांक (असल्यास)	1) पालिकेचे नाव: ठाणे इतर वर्णन : , इतर माहिती: मौजे-बोळीज,स.नं.383,विभाग नं.10,सदनिका नं. 101,विंग- डी,पहिला मजला,गोकुळ पार्क,विल्डींग टाईप- 3,वृंदावन टाऊनशिप,क्षेत्र- 36.94 चौ. मी. + बाल्कनी क्षेत्र- 5.80 चौ. मी. कारपेट.((Survey Number : 383 ;))
(5) क्षेत्रफळ	1) 42.74 चौ.मीटर
(6)आकारणी किंवा जुडी देण्यात असेल तेव्हा.	
(7) दस्तऐवज करून देणा-या/लिहून ठेवणा-या पक्षकाराचे नाव किंवा दिवाणी न्यायालयाचा हुकुमनामा किंवा आदेश असल्यास,प्रतिवादिचे नाव व पत्ता.	1): नाव:-मे. श्याम रियल्टी तर्फे मालक लक्ष्मीनारायण प्रभुदयाल अगरवाल तर्फे कु मु त्रिजेश राठोड - - वय:-30; पत्ता:-प्लॉट नं:-, माळा नं:-, इमारतीचे नाव: गोकुळ, ब्लॉक नं: ऑफीस 1, रोड नं: पेट्रोल पंप, आगाशी रोड, विरार- प, महाराष्ट्र, - पिन कोड:-401303 पॅन नं:-ADLPA8414E
(8)दस्तऐवज करून घेणा-या पक्षकाराचे व किंवा दिवाणी न्यायालयाचा हुकुमनामा किंवा आदेश असल्यास,प्रतिवादिचे नाव व पत्ता	1): नाव:-गौरी गौरव वर्तक वय:-37; पत्ता:-प्लॉट नं:-, माळा नं:-, इमारतीचे नाव: ए/205, विनायक अपार्टमेंट, ब्लॉक नं:-, रोड नं: कर्दळ रोड, सफाळे, पालघर, महाराष्ट्र, - पिन कोड:-401102 पॅन नं:-AIGPV6761R 2): नाव:-गौरव रघुनाथ वर्तक वय:-38; पत्ता:-प्लॉट नं:-, माळा नं:-, इमारतीचे नाव: ए/205, विनायक अपार्टमेंट, ब्लॉक नं:-, रोड नं: कर्दळ रोड, सफाळे, पालघर, महाराष्ट्र, - पिन कोड:-401102 पॅन नं:-AHIPV6288Q
(9) दस्तऐवज करून दिल्याचा दिनांक	04/01/2019
(10)दस्त नोंदणी केल्याचा दिनांक	04/01/2019
(11)अनुक्रमांक,खंड व पृष्ठ	123/2019
(12)बाजारभावाप्रमाणे मुद्रांक शुल्क	168000
(13)बाजारभावाप्रमाणे नोंदणी शुल्क	28000
(14)शेरा	

सह दुय्यम निबंधक
वसई क-२ (विशेष)

मुल्यांकनासाठी विचारात घेतलेला तपशील:-

मुद्रांक शुल्क आकारताना निवडलेला अनुच्छेद :-

(i) within the limits of any Municipal Corporation or any Cantonment area annexed to it.